

HOUSE No. 648

The Commonwealth of Massachusetts

PRESENTED BY:

Paul McMurtry

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to school operational efficiency.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Paul McMurtry</i>	<i>11th Norfolk</i>	<i>1/17/2025</i>

HOUSE No. 648

By Representative McMurtry of Dedham, a petition (accompanied by bill, House, No. 648) of Paul McMurtry relative to school operational efficiency. Education.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 596 OF 2021-2022.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to school operational efficiency.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 4 of chapter 30B of the General Laws, as appearing in the 2018
2 Official Edition, is hereby amended by striking out subsection (a) and inserting in place thereof
3 the following subsection:-

4 (a) Except as permitted pursuant to this section and section 7, for the procurement of a
5 supply or service for a governmental body in the amount of \$10,000 or greater, but not more than
6 \$50,000, a procurement officer shall seek written quotations from no fewer than 3 persons
7 customarily providing the supply or service; provided, however, that for the procurement of a
8 supply or service for a municipal or regional school district such amount shall be \$10,000 or
9 greater, but not more than \$100,000. The procurement officer shall record: (1) the names and
10 addresses of all person from whom quotations were sought, (2) the purchase description used for

11 the procurement, (3) the names of the persons submitting quotations and (4) the date and amount
12 of each quotation. Such information shall be retained in the file required pursuant to section 3. A
13 governmental body may require that any procurement for a governmental body in an amount of
14 not more than \$50,000 be subject to section 5; provided, however, that any procurement for a
15 municipal or regional school district such amount shall be not more than \$100,000.

16 SECTION 2. Section 5 of said chapter 30B, as so appearing, is hereby amended by
17 striking out subsection (a) and inserting in place thereof the following subsection:-

18 (a) Except as permitted under section 6 or section 8, award of procurement contracts in
19 the amount of more than \$50,000 provided, however, that award of procurement contracts for a
20 municipal or regional school district in the amount of more than \$100,000, other than contracts
21 for the procurement of real property, shall conform to the competitive sealed bidding procedures
22 set forth in this section.

23 SECTION 3. Said section 5 of said chapter 30B, as so appearing, is hereby further
24 amended by inserting after the figure “\$50,000”, in line 38, the following words:- and for a
25 municipal or regional school district in the amount of more than \$100,000.

26 SECTION 4. Section 6 of said chapter 30B, as so appearing, is hereby amended by
27 inserting after the figure “\$50,000”, in line 2, the following words:- and for a municipal or
28 regional school district in the amount of more than \$100,000.

29 SECTION 5. Section 6A of said chapter 30B, as so appearing, is hereby amended by
30 inserting after the figure “\$50,000”, in line 2, the following words:- and for a municipal or
31 regional school district in the amount of more than \$100,000.

SECTION 6. Section 7 of said chapter 30B, as so appearing, is hereby amended by inserting after the figure “\$50,000’, in line 2, the following words:- and for a municipal or regional school district in the amount of more than \$100,000..

SECTION 7. Section 56 of chapter 41 of the General Laws is hereby amended by adding the following sentence:- This section shall not prohibit payment to be made for: (i) school travel prior to the date of travel, or (ii) the payment of software licenses, software maintenance agreements or online subscription services for school curriculum prior to the fiscal year in which services will be rendered.

SECTION 8. Section 53F ½ of chapter 44 of the General Laws, as so appearing, is hereby amended by inserting after the word “utility”, in line 4, the following words:- , school transportation service.

SECTION 9. Said section 53F ½ of said chapter 44, as so appearing, is hereby further amended by inserting after the word “enterprise”, in line 22, the following words:- ; provided, however, that the appropriate local entity for a school transportation service shall be the school committee.

SECTION 10. Section 49A of chapter 71 of the General Laws, as so appearing, is hereby amended by striking out, in lines 6 and 7, the words “, provided that no payment therefor shall be made prior to the commencement of said ensuing fiscal year” and inserting in place thereof the following words:- ; provided, that payment may be made prior to the commencement of said ensuing fiscal year.

SECTION 11. Said chapter 71 is hereby further amended by adding the following section:-

Section 98. Notwithstanding section 53 of chapter 44 or any general or special law to the contrary, a school district may establish a School Transportation Reimbursement Fund. Reimbursements made by the commonwealth pursuant to this section may be deposited into the fund and may carry forward for 1 fiscal year. Funds received by a school district shall be deposited with the treasurer of the city or town and held as a separate account and expended by the school committee for the purposes of school transportation without further appropriation.

SECTION 12. Section 7D of chapter 90 of the General Laws, as appearing in the 2016 Official Edition, is hereby amended by adding the following paragraph:-

An application for a license pursuant to this section shall be acted upon within 14 days of submission to the registry.